

19. *Vasquez v. Ford Motor Co., et al*, Case No. CIVSB2428108
Defendant's Motion to Compel Deposition of Plaintiff
7/17/26, 9:00 a.m., Dept. S-17

Tentative Rulings

The Court would **GRANT**. Parties will meet and confer and reach mutually agreeable dates within twenty (20) days. Alternatively, the parties may stipulate at hearing to a mutually agreeable date for the deposition. No sanctions were requested.

Case Summary

This is a lemon law case. Plaintiff contends that he purchased the subject vehicle and that it was manufactured, distributed, and warranted by Defendant. Despite being covered by warranties, he alleges that Defendant failed to repair the vehicle in a reasonable number of attempts and failed to provide a replacement or restitution. As such, in September of 2024, he filed suit for (1) violation of Section 1793.2(d) of the Song-Beverly Consumer Warranty Act; (2) violation of section 1793.2(b) of the Act; (3) violation of Section 1793.2(a)(3) of the Act; (4) breach of the implied warranty of merchantability; (5) fraudulent inducement – concealment; and (6) negligent repair (as to Sunrise).

Relevant here, on January 9, 2025, Defendant first served a notice of the deposition of Plaintiff. The deposition was initially set for February 24, 2025. However, on February 21, 2025, Defendant served objections citing the unilateral setting of the date, among other things, but provided no alternative dates. This motion followed.

Analysis

Defendant Ford is seeking to obtain an order to compel Plaintiff to sit for his deposition. However, Plaintiff is not *per se* refusing to do so. However, Defendant has a right to be concerned: No deposition has occurred; trial is less than one month away; and the only dates presently offered by Plaintiff (August 16, 17, and 18) are after trial. An expression of willingness to be deposed is not equivalent to completing the deposition, particularly after repeated notices and nonappearances.

20. *Lewis v. Trenier, et al*, Case No. CIVSB2524508
Defendant's Demurrer to First Amended Complaint
7/17/26, 9:00 a.m., Dept. S-17

Tentative Ruling

The Court would **SUSTAIN**, with thirty (30) days leave to amend, because the First Amended Complaint's pleadings are at least uncertain and appear to indicate a statute of limitations concern. Separately, the Court would also **SUSTAIN**, again with leave to amend, as to the fourth cause for Constructive Trust. The Court **OVERRULES** as to the other arguments for demurrer.

Case Summary

This is a quiet title action. Currently, Defendant Trenier – who is Plaintiff's sister – is on the property's title. Plaintiff alleges he is the original purchaser of the property and its rightful owner. However, in late 2005, Plaintiff was incarcerated, and he alleges that he let Defendant rent the property due to his unavailability. Around April 202, 2006, Plaintiff executed a grant deed on the property in favor of Defendant. Plaintiff alleges that the parties agreed that Defendant would transfer the property back to him when he was released and available, but Defendant refuses to make such a transfer now. As such he filed suit on August 29, 2025. The currently operative First Amended Complaint (FAC) alleges (1) quiet title; (2) declaratory relief; (3) fraud; (4) imposition of constructive trust; and (5) unjust enrichment.

Analysis

Defendant demurs on four separate grounds: (1) the FAC fails to state facts sufficient to constitute a cause of action; (2) the FAC is uncertain, ambiguous, and unintelligible; (3) the FAC is barred by the statute of limitations; (4) the pleading is barred by the statute of frauds.

Statute of Limitations – Code of Civil Procedure section 338(d) sets out that fraud claims have a three-year limitations period; the cause of action does not accrue until the aggrieved party's discovery of the facts constituting the fraud or mistake. Because the remaining claims rely on the same fraud-based facts, the derivative property-related claims share the same three-year period. (*Krusi v. S.J. Amoroso Constr. Co.* (2000) 81 Cal.App.4th 995, 1005; *Ankoanda v. Walker-Smith* (1996) 44 Cal.App.4th 610, 615.)

It bears repeating here that Plaintiff alleged a grant deed conveying the property to Defendant was recorded on April 24, 2006, when he was incarcerated. (FAC, ¶¶13, 14.)

Plaintiff received a power of attorney document in 2015 that was never signed. (FAC, ¶17 & Exh. D.) Defendant argues this triggered a duty of reasonable inquiry including checking public title records. Thus, the fraud claim accrued in August 2015 and is, therefore, time-barred along with the remaining claims.